

to the value of the benefit of his bargain had said bargain been fully and properly performed.” (WEISS XC at ¶ 90.) Contract actions are meant to vindicate the rights of parties to a contract while tort actions exist to vindicate social policy. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 19.) The economic loss rule operates to avoid drowning the law of contract in the expansive sea of tort recovery. (*Id.* at p. 20.) The rule holds that there is no recovery in tort for purely economic losses, meaning financial harm unaccompanied by personal or property damage. (*Ibid.*) To avoid the rule a claimant seeking tort recovery for breach of a contract duty must show that the defendant’s conduct violated a duty independent of the rights and duties assumed under the contract and the defendant must have caused injury to persons or property not reasonably contemplated by the parties when the contract was formed. (*Id.* at ¶¶ 21-22.) Where an alleged breach is based on failure to perform as a contract provides and the parties reasonably anticipated and allocated the risks associated with the breach the action will generally sound only in contract because the breach deprives an injured party of the benefit for which it bargained. (*Id.* at ¶ 27.)

WEISS alleges only conduct falling under the economic loss rule because he expressly alleges “fraud” in that Demurring Defendants breached the EE purchase agreement and his contract of employment, denying him the benefits of bargains.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party’s pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) WEISS not having filed opposition, he does not indicate a reasonable possibility that amendment can cure identified defects.

Conclusion. Demurring Defendants’ unopposed demurrer to the cause of action for fraud plead in WEISS’s cross-complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

Rosamaria Guadalupe Campos-Alvarez et al. v. Humberto Espinoza, et al.
Case No. CU26-01890

Petition to Approve Minor’s Compromise (A.A.)
Petition to Approve Minor’s Compromise (D.A.)

TENTATIVE RULING:

The petition to approve the compromise of minor A.A.’s claims is GRANTED.

The petition to approve the compromise of minor D.A.’s claims is GRANTED.
